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CHAPTER 1: PRE -TRIAL PROCEEDINGS

1.1. The First Hearing

In the first hearing, parties to litigation, mainly, party plaintiff and party defendant, are expected to appear. At first hearing, the court reads the statement of defense, examines both parties to determine their respective positions, rules on any preliminary objections, and frames the issues for trial and it sets a date for the trial and at the trial it hears evidence and decides the issues.

1.1.1. Non -Appearance of parties in the First Hearing

A. Action Upon non-appearance of both parties

The court shall make an order that the suit be struck out, or in case of appeal, that the appeal be dismissed (Art. 69(2)). The court can't adjourn the case.

B. Action where defendant does not appear

If a plaintiff appears and the defendant does not appear, when the suit is called on for hearing, the court does not simply take action without having enough information about the non-appearance. This is because such non-appearance may be due to the fact that the defendant did not receive notice of the proceedings. Hence, where the defendant does not appear, the first question the court must ask is whether he/she was duly served or not. Then, it is up to the plaintiff to convince the court that he/she has duly served the defendant. **If the court is satisfied with the mode of service to the defendant, it automatically orders Ex-parte proceeding (Art70 (a)).**

Where the plaintiff appears and the defendant does not appear when the suit is called on for hearing the suit shall be heard ex-parte (provided that summon was duly served).

The Distinction between Ex-parte proceeding (Art 70) and Default proceeding (Art 233) is made by cassation interpretation, File15835.

✚ **Accordingly the date for submitting statement of defense and the date of hearing are different:**

If the non-appearance is on the date which is fixed for submission of statement of defense, the court should order Default proceeding based on Art 233.

If the non-appearance is on the date which is fixed for hearing, the order of the court will be Ex-parte proceeding (**Art 70 (a)**).

If summons was served on him in so short time that he may not be able to appear, the court will **adjourn the hearing** so that the defendant will have sufficient time to consider the allegations of the statement of claim and able to appear at the day fixed with his/her defense.

C. Action where plaintiff does not appear

Where the defendant appears and the plaintiff does not, the court shall order dismissal of the suit unless and otherwise the defendant, in his/her statement of defense, admits all or part of the claim.

1.1.2. Effect of Non-appearance

Where there has been non-appearance, depending on who has failed to appear, four things can happen:

1. The suit may be **struck out**; (Art. 69(2) or 70(d))
2. The suit may be **dismissed**; (Art. 73, 69(2) (2) 70(d) or 73)
3. The court may proceed **ex-parte**; (Art. 70(a))
4. The court may issue a **default Proceeding**; (Art. 233)

Struck Out

Where the case is struck out; the plaintiff may as of right bring a fresh action on the payment of full court fees. On the other hand, if he satisfies the court that there was a sufficient cause for his/her non-appearance, the original suit may continue and the plaintiff is relieved from payment of court fee.

Ex-Parte

The court will proceed to adjudicate the suit in the absence of the defendant. In effect, the defendant will not have the right to participate in the process of litigation. Whereas, if a third party defendant does not appear, the court enters a default decree (it decides as he affirm to contribute or share the claim of plaintiff from the main defendant). A party, who is aggrieved with the ex-parte order or default decree, may apply to have it set aside such decision within one month from the day he became aware of such action (art 78).

Default Proceeding

In default proceeding unlike Ex-parte proceeding the defendant, should not be refused to be a party to the litigation. The only effect of such order is that he will be precluded to exercise the procedural rights that should be exercised on the date of his non-appearance. For example, he cannot exercise his right to submit his written statement of defense (but he can defend orally).

1.1.3. Examination of Parties

Where the parties appear in person, the court verifies their identity. It then reads the pleadings and asks the parties on the pleadings. The question is whether each party or his pleader admits or denies the allegations of fact in the pleading of the other party that have not otherwise been denied. The court will specifically ask him whether he intended to admit that allegation is deemed denied. The court records all admissions and denial, and they form part of the record. In other words, the defendant may deny or admit the allegations in his statement of defense or at the examination. See Article 241 and 242. The examination is simply to determine what admissions and denials are made by the defendant which assists the court in framing the issues.

The main purpose of the examination at the first hearing is to help the court clarify and develop the issues for trial.

1.1.4. Ruling on Preliminary Objections (Art 244 (2))

A preliminary objection may be defined as an objection not going to the merits of the case that is, not involving the question of whether the defendant is liable to the plaintiff under the substantive law. After the court has examined the parties, it proceeds to decide any preliminary objections that have been raised.

When such objections are raised the court will hear the opposite party, order the production of such evidence as may be necessary and render a decision on the objection.

Any preliminary objection not raised at the earliest possible opportunity, i.e., at the time the court call for the first hearing, is deemed waived unless the ground of objection is due to reasons such as to prevent a valid judgment from being given (Art 244/3).¹

The acceptance of the preliminary objection has two effects

¹ This means, some preliminary objections, like lack of material jurisdiction, even if not raised at the first hearing may be taken as issues throughout the proceeding because their existence prevents the court from giving a valid judgment.

1. **Dismissal of the suit:** Where the court sustains an objection on the ground that the subject matter of the suit is **res judicata or the suit is barred by limitation**. Since, there is no opportunity for the plaintiff to file a fresh suit.
2. **Struck Out:** if the court sustains an objection on jurisdiction, plaintiff has the opportunity to file a fresh suit in a court that has local or material or judicial jurisdiction. And where the court sustains an objection on pendency, the suit will be struck out and the plaintiff would continue the prior suit. Struck Out does not preclude the institution of a fresh suit with respect to the same cause of action.

1.1.5. Framing of Issues

After the court has resolved any preliminary objections, it proceeds to frame and record the issues for trial. In framing the issues, the court considers the allegations in the pleadings, the contents of the documents produced by either parties or the oral allegations.

The very advantage of framing issues is to limit the scope of litigation of the parties during the trial proceedings.

1.2. Adjudication without Trial and Deposition of issues at the First Hearing

This is the disposition of cases after issues have been formed and before building a full-scale trial. The court may give judgment, in whole or in part, on the basis of the admissions that the parties have made in their pleadings or on the oral examination.

Agreement on Issue

Parties by themselves may agree as to the question of fact or law to be decided between them (Art 252).

- ✚ If it is a legal issue, there will be no trial. In such cases, the court may render judgment at the pretrial stage; this is because no evidence will be introduced.

1.3. Compromise and withdrawal

Compromise is basically an agreement reached by parties to a dispute after the case is taken to court and before judgment is rendered. If the parties have compromised the dispute, and nonetheless, files a suit, the defendant may assert the compromise as a defense at the preliminary objection.

Valid requirements of compromise agreement: (Art. 276)

- The name and place of the court in which the suit is pending
- The title of the action and the number of the suit

- The name, description, place of residence and address for service of the parties; and
- The matter to which the agreement relates

1.3.2. Withdrawal of suit

There are two types of withdrawal of suit; namely, ***Withdrawal With Leave*** (with the permission of the court) and ***Withdrawal Without Leave*** (out of court permission).

1. ***Withdrawal With Leave***

If a plaintiff asks permission to leave, the court will analyze whether the reason forwarded for withdrawal is satisfactory or not as per Art. 278(2) (a)&(b).

- ✚ The court should not simply permit withdrawal for those who could possibly continue with the proceedings but are interested to initiate the suit in some any other time. Since, the other party may be imposed to incur unnecessary expenses and inconveniences.

2. ***Withdrawal Without Leave***

A party may withdraw a suit without leave for two reasons.

- In case the court reject his request to withdrawal and the plaintiff withdraw regardless of the decision of the court on it.
 - If the party simply withdraws the suit without asking any permission to the court on that issue
- ✚ The ultimate outcome of withdrawal without leave is that he cannot institute a fresh suit in respect to the cause of action.

CHAPTER 2: THE TRIAL AND OTHER PROCEDURES

The trial essentially involves the introduction of evidence and the consideration of that evidence by the trier of fact.

2.1 Ordinary Proceedings

2.1.1 Production of Evidence to the Court

Evidence is produced to prove factual allegation/s that is/are affirmed by one party and denied by the other. The trial stage is basically the stage where oral testimony and documentary evidence are examined.

Where a witness is not in a position to testify in court because of physical incapacity or because of other causes, such witness may be examined on commission (Art 122).

An examination on commission is the examination of a witness by a person specifically authorized to examine the witness. Where the witness is not resident within the local limits of the court's jurisdiction or is about to leave those limits, the commission may be issued to any court within the local limits of whose jurisdiction the witness resides.

When (at what stage of the proceedings) should documentary evidence be introduced? The party will presumably seek to introduce in to evidence the documents on which he is relying during the presentation of his case at trial.

At the trial, the proponent will seek to introduce his document into evidence, and any objection to the admissibility of the document can be considered at that time. Note that, the court has the duty to exclude or not to admit the document even if no objection is made. Primary responsibility for the attendance of witnesses and the production of documents rests with the parties. However, the court, in the exceptional circumstance, may by its own motion, demand the production of evidence.

2.1.2 Conduct of the Trial

At the trial each party introduces the oral and documentary evidence necessary to support his side of the issue.

1. *Order of Proceeding*

Two concepts are involved under burden of proof: burden of persuasion and burden of going forward with the evidence. Burden of persuasion is the ultimate burden of convincing the court of an issue, and it does not shift during the trial. The burden of going forward with the evidence is on the plaintiff at the start of the trial. But this burden may shift to the defendant if defendant admits the allegations of the statement of claim and has raised what we have called affirmative defenses.

According to Art 258[1]:

On the day fixed for the hearing of the suit, the plaintiff shall be entitled to begin unless the defendant admits the fact alleged by the plaintiff and contends that either in point of law or on some additional facts alleged by the defendant, the plaintiff is not entitled to any part of the relief which he seeks, in which case the defendant shall be entitled to begin.

According to Art 260:

- 1) Where there are several issues, the burden of proving some of which lies in the other party, the party beginning may, at his option, either produce his evidence on those issues or reserve it by way of answer to the evidence produced by the other party.
- 2) When evidence is reserved, the party beginning may produce such evidence after the other party has produced all his evidence, and the other party may then reply specially on the evidence so produced by the party beginning but the latter party shall then be entitled to reply : generally on the whole case.

Now, let us see when plaintiff uses his option not to reserve evidence according to Art. 260 (1)

Plaintiff sued defendant to recover damage for non-performance of contract. Defendant denied that there is a valid contract or alternatively that if a valid contract is found to exist, he has performed it or alternatively that if he is found not to have performed the contract, he was prevented by force majeure, and if force majeure is not found to exist and plaintiff has suffered no damages.

What are the issues? We could have several issues in this case:-

1. Is there a valid contract?
2. If there is a valid contract, does the defendant perform its duties or not?
3. If he has not performed the contract, was he really prevented by force majeure?
4. If there was not force majeure, has plaintiff incurred damages or not?

So, under this scenario the plaintiff has the right to begin and has the burden of proving the essential element of the suit, that is, the existence of the contract. To this effect, Art. 260(1) of the Civil Procedure Code gives the plaintiff the opportunity to produce all his evidence on all the four issues without waiting

for the defendant to produce evidence on the issues he has the burden of proof, or reserve it by way of answer to the evidence produced by the other party.

In the first option, the plaintiff would not only be confined to prove the existence of the contract but he will also produce all his evidence that would prove that defendant has not performed it, that defendant was not prevented by force majeure and that plaintiff has incurred damage. Then the defendant will follow and will produce all his evidence on all the issues and will address the court. Lastly, the plaintiff will reply on the whole case.

In the second option, if the plaintiff has reserved his evidence, the following procedure is employed. The plaintiff produces his evidence on the issues as to which he has the burden of proof. Assuming that the evidence is sufficient, the defendant must produce his rebuttal evidence and the evidence on the issues as to which he has the burden of proof. If defendant has introduced sufficient evidence on the issues as to which he has the burden of proof, the plaintiff must produce his evidence on those issues. Then the defendant replies specially on the evidence produced by the plaintiff and the plaintiff replies on the whole case.

2. Production of Evidence by the Parties

The primary responsibility for the examination of witnesses rests with the parties.

1. The examination-in-chief
2. The cross-examination
3. The re-examination

The manner of giving evidence (Art 261):

The witness first and foremost takes the oath, and proceeds to answer the questions propounded by the proponent or his advocate.

No question shall be put in re-examination except for the purpose of clarifying matters, which have been raised in cross-examination (Art 263/4).

What are the legal requirements of examination-in-chief?

The purpose of the rule forbidding leading questions on examination-in-chief [and by implication in re-examination] is to prevent a witness who is quick to adopt the suggestion of the examiner from saying

something that he would not say otherwise. The examiner cannot put words in the mouth of the witness, so to speak.

According to Art 263 [2] of the CC, the court may at any time permit the asking of leading questions three situations where:-

- 1) When the witness is being examined as to what are called introductory matters. The evidence of each witness shall start with his name, age, occupation and address, and to save time, the examiner can simply start “your name is....., isn’t it?”
- 2) The second situation is where the witness cannot remember some or all of the matters as to which the testimony is sought.
- 3) The third situation is to assist child witnesses who have difficulty in testifying.

4. Power of the Court during production of Evidence

Our system of litigation has adopted the adversarial system of litigation, where the role of the court is minimal with regard to the examination of witnesses. However, the Ethiopian Civil Procedure Code has given the courts broad power with respect to the examination of witnesses and the production of documents at the trial.

1. The court has power to order amendment of pleadings on its own motion
2. The power to frame issues for trial
3. The power to put a question to a witness at any time during the examination

✚ It is only the court that examines the recalled witness (the parties, who have already examined) and the parties do not have a further opportunity to question him although they may request that he may be called.

Where there has been an objection to a question, which is overruled, on the basis of Art. 270, the court must record the question, the answer, the objection, the name of the person making it and the court’s ruling. This is to enable the appellate court to determine whether the objection was properly overruled. Even though it is not required by the code, the court should follow the same procedure where an objection is sustained, again so that the appellate court can determine whether the sustainability of the objection is proper.

2.1.3 Judgment and Decree

2.2 Special Proceedings

2.2.1 Summary Procedure

Summary procedure refers to a procedure by which the plaintiff may prosecute his claim without the necessity of instituting a full-scale suit. summary procedure is designed for cases where the defendant is not likely to have any defense to the plaintiff's claim, and before instituting suit under this procedure, the plaintiff should be required to swear that he believes this to be so. The statement of claim is not served on the defendant. Instead the court serves a special summons in the form set forth in the Second Schedule No 17.

- ✚ Once the court allows the defendant to defend the case, the summary proceeding will be turned to ordinary proceeding and the case will be handled as any other ordinary cases.

The purpose of the procedure is to enable the plaintiff to avoid a full-scale suit.

2.2.2 Accelerated Procedure, Art 300 & ff

Special procedure provisions are designed to facilitate the disposition of cases where the claim is not likely to be disputed or where the nature of the claim is such that an immediate decision is required and feasible.

2.3 Other Procedural Matters

These procedures come when a proceeding is initiated by the plaintiff and the plaintiff and the defendant demand a temporary relief until the case is disposed.

2.3.1 Arrest Judgment. Art 147/also called security for appearance

It is applicable only to suits not involving immovable property.

Note that the purpose of these provisions is to require the defendant to furnish security rather than to detain him.

In this case the defendant may not be so detained for more than six months.

2.3.2 Attachment before Judgment

The rules related to security for production of property are designed to prevent the defendant from disposing of or removing his property so as to prevent execution.

It is applicable where the court is satisfied that the defendant, with the intent to obstruct or delay the execution of any decree that may be passed against him, is about to dispose of the whole or any part of his property or is about to remove such property from the local limits of the court's jurisdiction.

Art 152; Attachment of the Property

- 1) Where the defendant fails to show good cause why he should not furnish security, or fails to furnish the security required, within the time fixed by the court, the court may order that the property specified, or such portion thereof appears sufficient to satisfy any decree which may be passed in the suit, be attached.
- 2) Where the defendant shows such cause or furnishes the required security after the property specified or any portion of it has been attached, the court shall order the attachment to be withdrawn, or make such other order as it thinks fit.

2.3.3 Temporary Injunctions, Interlocutory Orders and Appointment of Receiver

Since litigation may and frequently does take some time to be finally decided, it is necessary to make provision for the protection of the parties and the maintenance of the property in dispute pending the final determination of the case

2.3.4 Temporary Injunctions

An injunction is an order restraining a party from doing a particular act or requiring him to do such an act.

Temporary injunction issued where;

1. The property in dispute is in danger of being wasted, damaged or alienated by a party to the suit
2. The property in dispute is in danger of being wrongfully sold in execution of a decree, or;
3. The defendant threatens or intends to remove or dispose of this property with a view to defraud his creditors.
- 3) Where, in a suit to restrain the breach of a contract or the commission of an act, the defendant is threatening to breach the contract or do the act pending litigation.

Notice of the application should be given to the opposite party but if the object of the injunction would be defeated by the delay in giving notice, that is, there is the immediate danger that the party will do the act unless restrained; the injunction may be issued ex parte (Art 157).

Where property has been attached, the attachment remains in effect for a maximum of one year, and if the disobedience or breach continues, the property is sold, and out of the proceeds the court awards such compensation to the other party as it thinks fit (Art 156/2).

✚ **Decree** – is the operative part of the judgment.

2.3.5. Interlocutory Orders

IO is a temporary order issued by a court during the course of litigation that is not a final resolution of the case. It is made to address specific issues or matters that arise before the final judgment is rendered. E.g. temporary injunction

2.3.6 Habeas Corpus

A Habeas Corpus petition is a petition filed with a court by a person who objects to his own or another's detention or imprisonment.

The power of adjudication to application for Habeas Corpus is vested on the Federal High court.

CHAPTER 3: REVIEW OF JUDGMENTS

Either of the parties to the litigation may not be satisfied by the decision of the first instance court. So, they may wish to find out the mechanism to review the judgment.

There are three ways of reviewing a judgment.

1. Reviewing before the court, which rendered the judgment
2. Reviewing before an appellate court
3. Reviewing before the court of cassation

3.1 Reviews by Court of Rendition

There are conditions whereby the court of rendition revises its own judgment. ***Procedural Irregularity, Newly Discovered Evidence and Opposition.***

3.1.1 Procedural Irregularities

It is a non-compliance with the provisions of the Code, and such irregularities have substantially affected the disposition of the case to the determinant of one of the parties, it may, on its own motion or on motion of either party, set aside the proceedings in whole or in part as irregular, amend them, or make such other order as may be appropriate.

✚ Any irregularity is deemed to have been validated where no appeal is taken from the judgment or where the judgment is confirmed by the appellate court.

3.1.2 Newly Discovered Evidence

Discovering of new evidence by itself is not enough for someone to claim for revision of the judgment of the trial court. Three criteria should be satisfied: art 6

1. The evidence must be discovered after the judgment is rendered,
2. The newly discovered evidence must affect the decision, and
3. The evidence must be of such nature as to suggest improper conduct, which tainted/corrupted the judgment with fraud, i.e., forgery, perjury, bribery or the like.

✚ No appeal lies from the order of the court granting or rejecting an application for review.

3.1.3 Opposition

Opposition can be raised by a person who, though not a party, is affected by the judgment. Any person who should or could have been made a party to a suit and whose interests are affected by a judgment in the suit may, if he was not a party to the suit, file opposition to the judgment before the judgment is executed. **A party to file opposition shall satisfy three conditions:-**

1. He/she should or could have been made a party (mandatory joinder)
2. His/her interests are affected by the judgment rendered in his absence; and
3. He/she is filed prior to execution of the decree

If we go through those requirements, it would seem that three classes of persons would be able to file opposition; indispensable parties, persons who are the real parties in interest, and persons who, as a result of the decree, will be liable for contribution or indemnity to the unsuccessful party.

3.2 Reviews by Appeal to a Higher Court

When an appeal has been taken, the appellate court reviews the decision of the subordinate court to determine whether that court committed such errors in its hearing and disposition of the case, which guarantee the appellate court to reverse the decision.

An appeal means a review of the case and not a retrial of the case by the appellate court. The appellate court does not hear additional evidence on the appeal, and where the introduction of additional evidence is permitted, it is limited to exceptional circumstances.

3.2.1 Right of Appeal

The party taking the appeal is called the appellant, and the party against whom the appeal is lodged is called the respondent.

It is also possible that both parties may be dissatisfied with the decision and if so, both may appeal. For example, the court may have entered judgment for the plaintiff, but may have awarded him a lesser amount of damage than he or she claimed. In such a case, the defendant may appeal from the decision on the issue of liability, and the plaintiff may appeal from the decision on damages.

Since the judgment on the issue of liability was for the plaintiff, his appeal is called a ***cross-appeal***; as to that issue, ***the plaintiff would be the cross appellant*** and ***the defendant would be the cross respondent***.

The judgment appealed from is presumed to be correct, and the burden is on the appellant to show that it should be reversed or varied.

✚ ***There is one appeal as of right.***

Where the case was tried in the First Instance Court, an appeal lies to the High Court in whose area of jurisdiction that the First Instance Court lays; where the case was tried in the High Court, an appeal lies to the Supreme Court.

Where, an appeal, the appellate court confirms the judgment, a further appeal does not lie. If, however, the judgment is varied or reversed, a second appeal lies to the next highest court.

Example: if the High Court varies the judgment of the First Instance Court, an appeal lies to the Supreme Court, and if on appeal to the High Court from a case originally tried in the First Instance Court, the High Court varies the judgment, a further appeal lies to the Supreme Court.

✚ Under the Criminal Procedure Code where two appeals are authorized as of right.

3.2.2 Types of Appeal

An application to the appellate court may be of two types: ***Appeal on Judgment*** and ***Appeal on Orders*** (Interlocutory Appeal).

1. ***Appeal on Judgment***

Regardless of the length of the procedure; i.e. without trial (at the first hearing) or after trial (full-scale trial); If the case is adjudicated on its merits, then any application for appeal on such judgment can be considered an appeal on Judgment.

Any application for review of orders made by the court at any level of the litigation not on the merit of the case is called ***Appeal on Orders (Interlocutory Appeal)***.

2. ***Appeal on Orders (Interlocutory Appeal)***

IO is a temporary order issued by a court during the course of litigation that is not a final resolution of the case. E.g. a decision on preliminary objections, a ruling on the admissibility of evidence, temporary injunction

✚ Where the ruling does dispose of the case, it is a final judgment and appealable.

Under the CPC, interlocutory appeals are not permitted. However, any such decision or order may be raised as a ground of appeal when an appeal is made against the final judgment. Thus, there can be but one appeal that forms the final judgment art 320/3.

Exception: Interlocutory order that directs arrest or detention, or transferring property from one party to another or refusing to grant an application for Habeas Corpus is appealable (art 320/4). Thus, in all other cases the court must reject any appeal taken on an interlocutory matter.

3.2.3 Grounds of Appeal

In the memorandum of appeal, the appellant must set forth his grounds of appeal, where there is more than one grounds, each ground shall be set forth separately and numbered consecutively (see art 327).

3.2.4 Memorandum of Appeal

The memorandum of appeal must contain, the requirements stated under Art 327.

- 1) The name of the court which gave the judgment appealed from, the date of the judgment in the number of the suit in which it was given
- 2) The grounds of appeal, that is, the reasons for which the judgment should be reversed or varied, and
- 3) The nature of the relief sought, e.g., the appellant wants the judgment to be reversed or he wants it to be varied in certain respects.

✚ The appellant must submit sufficient copies of the memorandum for service on each respondent.

3.2.4.1 Time for appeal

Normally, the memorandum of appeal must be filed within 60 days from the time of the delivery of judgment (Art 323(2)). However, this may not be true all the time. Some substantive laws may fix their own period of limitation even less than or more than of 60 days.

What is the effect of failure to apply the memorandum within the period of limitation?

Where an appeal is filed after the period of limitation, fixed by the appropriate law is already lapsed, the Registrar must refuse to accept the memorandum of appeal, and he will inform the appellant that he may

within 10 days file an application for leave to appeal out of time (የተወሰነው ቀን ካለፈ በኋላ ይግባኝ እንድታ ይለት የፍቃድ መጠየቂያ ማመልከቻ) (Art 324(1)).

If the court is satisfied that the appellant was prevented by good cause from appealing in time, it records an order granting the application, and the appellant shall file his memorandum of appeal within 10 days of such order. No appeal lies from a decision dismissing an application for leave to appeal out of time (Art 326).

3.2.4.2. Stay of execution

Stay is allowed only in exceptional cases. The fact that an appeal has been taken does not operate to stay the proceedings or to prevent execution of the decree. Execution can be stayed only upon a showing that substantial loss will result if the stay is not granted and that appellant's furnishing security for the performance of the decree.

Both the appellate court and the subordinate court are authorized to grant stays, it seems implicit that the subordinate court should only order a stay if an appeal has not been taken. Once an appeal has been taken, any stay should be granted by the appellate court.

3.2.5 Procedure on Appeal

1. Hearing of Appeal

If the appellant bases his appeal entirely on the memorandum of appeal and does not apply for permission to call additional evidence, the appellate court may decide the case solely on the basis of the grounds set forth in the memorandum of appeal without upholding the hearing.

Where the appeal is not entirely dismissed, the appellate court is to cause the memorandum of appeal to be served on the respondent. Fix a day for the appeal and summon the respondent to appear, advising him that if he does not appear, the appeal will, nonetheless, be heard (art 338).

If the court does not dismiss the appeal, the respondent is then heard in rebuttal, and the appellant is entitled to reply. The court may, however, require the respondent to submit a written reply to the memorandum of appeal and the appellant to submit a written counter-reply (Art 339).

2. Framing of Issues

If, during hearing the appeal, the appellate court concludes that the subordinate court has omitted to frame or try an issue or to determine any question of fact which is necessary for the decision of the suit on the merits, the appellate court may frame those issues and refer them to the subordinate court, which is to take

the evidence on those issues. The subordinate court does not review its decision in the case; it merely takes the evidence, makes findings, and submits the evidence and finding to the appellate court (Art 343). By employing this procedure, the appellate court avoids the necessity of taking such evidence itself.

3. Additional Evidence

The general rule is that the parties are not permitted to produce new evidence that was not presented at the lower court. However, there are three situations where the introduction of new evidence on appeal is authorized.

- 1) The subordinate court refused to admit evidence that ought to have been admitted
- 2) The appellate court requires and document to be or any witness to be examined to enable it to pronounce judgment; or
- 3) There is substantial cause justifying the production of the evidence. See Art 345

3.2.6 Judgment on Appeal

1. Reversal for substantial error

The judgment of appellate court may confirm, vary or reverse the decree or order from which the appeal is taken (Art 348).

It is only where the error substantially prejudiced the unsuccessful party that the judgment will be reversed or varied.

Procedural irregularity doesn't cause the reversal of the judgment, unless the errors were such as to prevent a valid judgment from being given or denied a party a fair trial. In such a case the appellate court is directed to quash the proceedings and order a retrial.

Example of the procedural irregularities: Suppose the statement of claim was not signed by the plaintiff, in violation of Art. 93. Despite the objections of the defendant, the court never required him to sign it.

2. Remand (ይግባኝ ሰሚ ፍርድ ቤት በይግባኝ የቀረበለትን ነገር ወደ ወሰነዉ ፍርድ ቤት የምልሰበት ሁኔታ)

When an appellate court sends an appealed case back to the trial court for further action, the case is said to be remanded. This usually happens if the trial judge has made an error, which requires a new trial or hearing. Art 341

For example, assume that a trial court refuses to allow a party to introduce certain evidence (believing it to be inadmissible). If the appellate court decides that the evidence should have been admitted and that the

exclusion of the evidence was prejudicial to the party offering it, the appellate court would likely remand the case for new trial and order the evidence introduced.

3.2.7 The Second Appeal

When we say second appeal, it is to mean that it is an appeal against the judgment of the appellate court, which varied or reversed the judgment appealed from. If the appellate court confirmed the judgment of the first instance court, although on a different ground, a second appeal does not lie.

The second appeal is to be a review of the decision of the first appellate court varying the judgment appealed from and not a review of the decision of the trial court.

3.2.8 Restitution

The taking of an appeal does not prevent execution of the decree unless a stay is ordered for sufficient cause. Thus, the judgment in favor of one party will have been executed, however, on appeal, that judgment will have been reversed. In such a case the successful appellant is entitled to restitution, and he must make his application for restitution in the court of first instance (Art 349).

3.3 Revision in Court of Cassation

The decision made by the Federal Supreme Court on issues of law has a binding effect not only on Federal matters but also on State matters. This indicates that the Federal Supreme Court has a power to exercise its court of Cassation even on cases that are purely State matters.

Unlike the appellate court, the court of cassation only reviewed the decision of the lower courts if it has an error of law, not error of fact.

The one who claims reviewing of the judgment of the lower court is called ***applicant***, and the other litigant party, ***respondent***.

CHAPTER 4: EXECUTION OF DECREES

4.1. Jurisdiction in Execution

A decree can be executed either by the good will of the judgment debtor or by the order of the court. If the beneficiary of the judgment is interested in executing a decree, he has to appeal to that effect to the court, which has jurisdiction. Normally, the court, which passed the decree, has a jurisdiction to execute such decree. However, in certain circumstances, it may be transferred for execution to another court.

4.1.1 Transfer for Execution

Ordinarily, the court which rendered the decree or to whom execution was delegated by the appellate court or referred by the court of cassation will execute it. But if execution by that court is not feasible, the court may, upon its own motion or application of the decree-holder, send the decree to another court for execution. See art 372

The transferee court may not transfer the decree for execution to another court. It retains the power to execute the decree notwithstanding that an appeal has been taken from the judgment in the suit.

The court to which the decree is transferred for execution must execute the decree as passed and cannot vary or alter it. It can only refuse to execute the decree if it concludes that the transferring court lacked material jurisdiction to render it or that the decree is clearly illegal.

4.1.2. Powers of the Court upon Execution

The court cannot execute a decree simply because it has a jurisdiction to that effect. Hence, an application by the decree-holder to the court which issued the decree is important.

Where a suit by the judgment-debtor against the decree-holder is pending in any court, the court which issued the decree may, on such terms as to security or otherwise as it thinks fit, stay the execution of the decree until the pending suit has been decided.

4.2 Proceedings in Execution

4.2.1 Application for Execution

An application for execution is the first step to proceeding for execution, in case the decree is not satisfied by the judgment-debtor. In a sense the proceedings in execution are a continuance of the original suit, and the original suit is not finally closed until the decree is satisfied.

✚ Application for execution may be made as soon as the judgment-debtor is in default. See art 37

1. Application by transferees

If a decree is transferred by assignment in writing or by operation of law, the transferee may apply for execution. Once the application is granted the decree may be executed in the same manner and subject to the same conditions as if the application were made by the original decree-holder (Art 381/1).

Where the decree has been transferred by assignment and the assignee applies for execution, notice of the application shall be given to the original decree-holder and the judgment-debtor. The purpose of such

notice is to permit the raising of defenses to execution by the assignee, e.g., the assignee did not satisfy his agreement with the assignor or the judgment-debtor to pay the assignor.

✚ Note that such notice is not necessary where the transfer has been made by operation of law.

A transfer of the decree by operation of law may arise where:

1. The decree-holder has died, and the decree has passed by devolution or succession,
2. The decree-holder has become insolvent, and the decree has passed to the assignee or receiver;
3. A judgment has been entered against the decree-holder in another suit, and the decree has been transferred in execution proceedings against him.

4.2.2 Limitation

The CPC does not specify a period in which the first application to execute the decree must be filed. Since the decree creates an obligation for the benefit of the decree-holder, the ordinary period of limitation for the enforcement of obligations, which is ten years. Thus it is barred after lapse of the 10 years.

1. Execution of cross-decrees

It is where the judgment debtor has applied for execution of a decree for the payment of money against the decree holder, which was obtained in a separate suit. Somehow, it is similar to counter claim brought by the defendant when the plaintiff institute a case against him.

Where both parties have made such applications, their decrees are called cross-decrees. In order for the rules relating to cross-decrees to apply, the following conditions must be satisfied:

Illustration

Where A has a judgment against B for Eth. \$ 1,000 obtained on a debt owed by B to him; and B has a judgment against A for Eth. \$2,000 on a debt owed to him by A and both apply for execution. The court must treat the decrees as cross-decrees and apply the special rules as to their execution.

4.3. Attachment and Sale

Most decrees are for the payment of money, and attachment and sale of the property of the judgment-debtor is the primary method by which such decrees are executed.

When the decree-holder files his application for execution, he must indicate whether he wishes the decree to be executed by the attachment and sale of property.

Properties exempted from attachment: (Art 404)

- 1) The necessary wearing-apparel, cooking vessels, bed and bedding of the judgmentdebtor and his family
- 2) Tools, instruments or implements of any kind used by the judgment-debtor in his profession, art or trade
- 3) Where the judgment-debtor is an agriculturalist, such cattle and seed-grain as may, in the opinion of the court, be necessary to enable him to earn his livelihood
- 4) Such amount of food and money as May, in the opinion of the court, is necessary to sustain the judgment-debtor and his family for a period of three months;
- 5) Pensions and alimonies;
- 6) Two-thirds of the judgment-debtor's salary, or where the salary does not exceed Eth.\$ 2 per day, and the judgment-debtor has no other income, the entire salary
- 7) Any other property declared by law to be exempt from attachment or sale.

The attachment is made by physical seizure of the property; the execution officer must keep the property in a safe place and be responsible for its custody (Art 406).

Property may not be subject to attachment either because it is exempted from attachment or because it is not the property of the judgment-debtor (Art 418).

A claim or objection to the execution is made by presenting a written application to the court executing the decree.

4.3.2 Sale of property

Unless otherwise directed, all sales must be conducted by an officer of the court or a person appointed for this purpose and made by public auction.

Where the sale is to be by public auction, the court must cause a proclamation of sale to be made. The proclamation of sale may be drawn up only after notice to the decree holder and the judgment-debtor must state the time and place of sale.

No sale may take place, without the consent in writing of the judgment-debtor, until at least 30 days after publication of the proclamation in the case of immovable property, and 15 days after publication in the case of movable property (Art 426). The only exception is where the property is subject to decay or is of a kind that must be stored at a cost in excess of its value. In such cases the property may be sold immediately after attachment.

The date is calculated from the time when the copy of the proclamation is affixed on the courthouse door or the date of proclamation in the newspaper, if this is done, whichever is later. The purpose of this requirement is to give prospective bidders sufficient time to be advised of the sale and to decide to bid.

- ✚ The decree-holder may not bid at the sale without the written permission of the court, and a copy of the order granting permission must be given by the court to the auctioneer.

Before the sale is completed, the judgment-debtor can still save the property by paying the amount of the debt and the costs.

- ✚ Where the highest bid does not reach a sum equal to the value specified in the proclamation of sale, the property is not to be sold. Instead a second sale by auction must be held after the issuance of a fresh proclamation in accordance with the prescribed rules. At the second sale, the highest bid, whatever its amount, must be accepted and the property is sold.
- ✚ Where no bidder presents himself at the second auction, the court may, notwithstanding any provision to the contrary, authorize the decree-holder to take possession of the property ordered to be sold at its estimated value in full or partial satisfaction of the decree, as the case may be (Art 428/2).

1. Setting Aside the Sale

The court for the following reasons set aside the sale of immovable property.

- a. The judgment-debtor has no saleable interest in the property
- b. Another person has an interest in the property
- c. There is material irregularity or fraud in the conduct of the sale, resulting in substantial injury to the applicant.

Where no application to set aside is made within two months from the date of the sale, the sale becomes absolute.

CHAPTER 5: RES JUDICATA AND SPLITTING OF CLAIMS

Res Judicata is a Latin term which literally means “*the matter having been litigated*”.

Pendency: ብቅጣሮ ላይ ያሉ ክስቶች (Art 8)

Civil suit may not be instituted in more than one civil court. If instituted in any one of several courts, the court in which the statement of claim was first filed shall entertain the case and dispose it. The pendency

of a suit in a foreign court shall not preclude the courts in Ethiopia from trying a suit founded on the same cause of action.’

Res judicata operates as a defense for the person in whose favor the previous suit or issue was decided, by way of a preliminary objection at the first hearing.

- A suit that has been withdrawn with leave does not constitute a suit in which the matter was decided, hence no res judicata.
- A decision on an interlocutory matter operates as res judicata as to the issue involved.

5.1. Persons Bound by Res Judicata (Art 5)

A. Parties to suit

In order a decision to have res judicata effect, the former suit has to involve the same parties or parties under whom the parties in the subsequent suit claim. In both instances, all parties must be litigating under the same title.

B. Matters Directly and Substantially in Issue

The principle of res judicata is applicable only where the matter directly and substantially in issue in the subsequent suit was also directly and substantially in issue in the former suit. Matters which ought to have been raised in the first suit are deemed to have been raised, and consequently cannot be raised in the subsequent suit.

Sometimes the question of what matters are directly and substantially in issue is tied up with the question of counterclaim and set-off. The defendant has the option of asserting any claim he may have against the plaintiff by way of counter claim or set-off, but is not required to do so.

5.1.1 Matters Which Has Been Heard and Finally Decided

1. Issues Decided by the Court

If an issue has been raised, but has not been decided, that issue is not res judicata irrespective of the result of the suit.

5.1.2. The Scope of Res Judicata

The scope of res judicata is to be very broad. It has two aspects:

- 1) Any matter on which might and *ought to have been made a ground of defense* or attack in the suit shall be deemed to have been substantially and materially in issue.

- 2) Any *relief claimed in the suit which has not been expressly granted by the decree passed* in the suit shall be deemed to have been refused.

Res judicata applies not only to the issues that were expressly decided, but also to the issues that would have been decided if raised by the parties. The parties are deemed to have asserted all grounds, which might and ought to have been asserted. The failure to raise such grounds in a former suit means that they cannot be raised in any subsequent suit. In effect, they are deemed to have been decided adversely to the party seeking to raise them in subsequent suit.

- ✚ It should be observed that the failure to assert a claim of counterclaim or set-off by the defendant does not bar his doing so in a subsequent suit.

2. Relief not granted

Any relief claimed in the former suit which has not been expressly granted by the decree passed in such suit shall be deemed to have been refused (Art 5/3).

5.2. Splitting of Claims

The splitting of cause of action is prohibited. Every suit must include the whole of the claim, which the plaintiff is entitled to make with respect to the cause of action. If the plaintiff omits to sue in respect of any portion of his claim, he may not afterward sue with respect to the portion so omitted. Art 216

If the plaintiff omits to sue for part of the claim or omits, except with leave of court, to sue for all of the relief to which he is entitled, he may not subsequently sue for the part of the claim or relief he has omitted.